

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

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INTERNATIONAL	LONGSHOREMEN'S	:
ASSOCIATION,		:
	Complainant,	:
		:
v.		:
		:
GATEWAY TERMINALS, LLC;		:
CHARLESTON STEVEDORING COMPANY,		:
LLC; PORTS AMERICA FLORIDA, INC.;		:
CERES MARINE TERMINALS, INC.; AND SSA		:
ATLANTIC, LLC.		:
	Respondents.	:
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FMC Docket No.: 22-12

**CONSENT MOTION TO EXTEND THE TIME PERIOD FOR DISCOVERY
AND TO FILE BRIEFS ON JURISDICTIONAL ISSUES**

Complainant International Longshoremen's Association (ILA) hereby moves for a twenty-one (21) day extension of the time period for the Parties to engage in discovery and file briefs regarding jurisdictional issues due to prejudice it would cause the ILA because of scheduling conflicts for the ILA's attorneys. All Respondents have consented to this request.

Good cause exists for the ILA's requested extension. A jurisdictional argument must rely on a factual analysis of the Respondents' business arrangements with the two Port Authorities. Evidence for such arrangements are wholly in Respondents' possession. The ILA served Respondents with its First Request for the Production of Documents on January 19, 2023. The vast majority of those requests sought documents which would directly bear on whether the Commission has jurisdiction over respondents. Yet, thus far, Respondents have not produced any discovery whatsoever, and Respondents are not expected to produce any documents until ordered

to do so. As the scheduling currently stands, the ILA will receive its first voluminous production of documents on March 29, 2023, but be forced to review and digest that production, create an appendix, and simultaneously craft a legal brief in an abbreviated time.

Even if that abbreviated period would normally be feasible, the ILA's attorneys have received a briefing schedule from the United States Court of Appeals for the Fourth Circuit in *South Carolina State Ports Authority v. NLRB*, 4th Cir. No. 23-1059. The Agency record in that case is due on March 17, 2023, the Petitioner's brief is due March 31, 2023, and the ILA's brief is due April 28, 2023. The ILA also has a response brief due on May 26, 2023.

An extension of twenty-one days will offset the deadlines of the two schedules to allow ILA attorneys to be able to give this matter all necessary attention.

Specifically, the ILA asks that the deadlines in the ALJ's briefing schedule be extended as follows:

April 19, 2023: Respondents provide the records submitted to the Commission in 2019 and any updated versions of those records, including but not limited to all contracts, agreements, or leases between Respondents and Georgia Ports Authority and South Carolina Ports Authority regarding the operation of the terminals at the Ports of Savannah and Charleston from 2019 to present, including amendments. Parties respond to existing discovery requests regarding jurisdictional issues only, including records showing how the terminals operate at the two ports, and each party's function, including what role, if any the Respondents play in "providing wharfage, dock, warehouse, or other terminal facilities in connection with a common carrier...." No Depositions will be scheduled at this time.

Respondents will provide all additional responsive discovery that they were unable to produce by the earlier deadline, including documents responsive to the ILA's First Request for the Production of Documents.

May 10, 2023: Complainant's brief relating to jurisdiction; any remaining discovery issues relating to jurisdiction should be identified in the brief (what was requested, why it is relevant, and what it might show).

May 31, 2023: Respondent's opposition brief relating to jurisdiction; any remaining discovery issues relating to jurisdiction should be identified in the brief (what was requested, why it is relevant, and what it might show).

June 14, 2023: Complainant's reply brief and responses to proposed findings of fact.

WHEREFORE, the ILA respectfully request that the Commission extend the deadlines to for the Parties to engage in discovery and file briefs on jurisdiction by twenty-one (21) days.

Dated: March 14, 2023
New York, New York

MAZZOLA MARDON, PC

By: /s/John P. Sheridan
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CERTIFICATE OF SERVICE

I hereby certify that the foregoing pleading was provided to Respondents' counsel of record by email on this 14th day of March, 2023.

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Dated: March 14, 2023
New York, New York

/s/Nicholas M. Graziano
Nicholas M. Graziano